

# MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ('Agreement') is entered into as of February 15, 2025 between TechVentures Inc. ('Company') and Beta Corp. ('Recipient'). Each party may disclose Confidential Information to the other in connection with a potential business collaboration ('Purpose').

## **1. Definition of Confidential Information**

1.1 'Confidential Information' means any non-public information disclosed by either party, whether orally, in writing, or by any other means, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure. This includes but is not limited to: technical data, trade secrets, know-how, research, product plans, services, customers, markets, software, developments, inventions, processes, formulas, technology, designs, drawings, engineering, hardware configuration information, marketing, finances, or other business information.

1.2 Confidential Information does NOT include information that: (a) is or becomes publicly known through no fault of the Recipient; (b) was rightfully known to the Recipient prior to disclosure; (c) is independently developed by Recipient without use of Confidential Information; or (d) is required to be disclosed by law or court order.

## **2. Obligations**

2.1 Non-Disclosure. Each party shall: (a) hold Confidential Information in strict confidence; (b) not disclose Confidential Information to any third party without prior written consent; (c) use Confidential Information solely for the Purpose; and (d) limit access to Confidential Information to employees who have a need to know and are bound by confidentiality obligations no less protective than this Agreement.

2.2 No License. Nothing in this Agreement grants either party any right or license to any intellectual property of the other party.

### **3. Term and Survival -- HIGH RISK CLAUSES**

3.1 Term. This Agreement shall remain in effect for a period of three (3) years from the Effective Date.

3.2 Survival. Notwithstanding Section 3.1, obligations with respect to trade secrets shall survive indefinitely. All other confidentiality obligations survive for five (5) years after termination.

3.3 Return of Information. Upon written request or termination, each party shall promptly destroy or return all Confidential Information and certify destruction in writing within ten (10) business days.

## **4. Remedies and Liability**

4.1 Injunctive Relief. Each party acknowledges that breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, the non-breaching party shall be entitled to seek injunctive and other equitable relief without posting any bond.

4.2 Liquidated Damages. In the event of unauthorized disclosure, the breaching party shall pay liquidated damages of \$500,000 per incident. The parties agree this amount represents a reasonable estimate of damages.

4.3 Indemnification. Each party shall indemnify, defend, and hold harmless the other from any claims, losses, costs, and expenses (including attorneys' fees) arising from a breach of this Agreement by the indemnifying party or its representatives.

5. General Provisions

5.1 Governing Law. This Agreement is governed by the laws of the State of New York.

5.2 Entire Agreement. This Agreement constitutes the entire agreement between the parties concerning confidentiality and supersedes all prior agreements on the subject.

5.3 Amendment. This Agreement may only be amended by a written instrument signed by authorized representatives of both parties.

Signed on behalf of TechVentures Inc.: \_\_\_\_\_ Date: \_\_\_\_\_

Signed on behalf of Beta Corp.: \_\_\_\_\_ Date: \_\_\_\_\_